

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 24, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Ken Esquibel. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

EXPRESSION OF APPRECIATION TO THE 2020-2021 MAYOR’S YOUTH COUNCIL AND STATE OF THE YOUTH ADDRESS. Jan Spires, Youth Alternatives and staff advisor to the Mayor’s Youth Council, expressed appreciation to Youth Council members, recognized their year in service and introduced Emily Lucero, Chair, for the Mayor’s Youth Council, who presented the State of the Youth Address. Ms. Lucero reviewed projects and programs the group participated in throughout the year. She expressed appreciation to Ms. Spires, Michael Skinner, City Public Information Officer, Haylee Chenchar and Amber Ash with the Downtown Development Authority, Mayor Collins and fellow Youth Council members. Ms. Spires thanked the member’s parents for allowing them to participate with the council and introduced and presented awards to the following members: Kaylee Ashley, David Barker, Ty Bronder, Garrison Cook, Makiya Green, Nevaeh Green, Emily Lucero, Zoey Lundin and Elizabeth Stump.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Johnson declared a conflict of interest due to an employment affiliation and did not vote. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson who did not vote.

[CA] Minutes from Regular Meeting of the Governing Body on May 10, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a retail liquor license transfer of location application filed with the City Clerk’s Office for Poor Richard’s, from 2233 E. Lincolnway to 1808 O’Neil Ave., Cheyenne, Wyoming. Inquiry was made related to the location and scope of the business and it was noted no representatives were present to report on the inquiry. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a retail liquor license transfer of ownership application filed with the City Clerk's Office for ARCHCO Albany, LLC d/b/a Albany Restaurant, Bar, and Package Liquor, 1506 Capitol Ave., Cheyenne, Wyoming (license currently held by Albany, Inc. d/b/a Albany Restaurant, Bar and Liquormart). Brian Bau, ARCHCO Albany, LLC representative, advised he was available to answer any questions. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred to application to Finance Committee.

Mayor Collins opened a public hearing for a bar and grill liquor license application filed with the City Clerk's Office for Capitol Cuisine LLC d/b/a Ike's Bar & Grill, 122 West 6th St., Cheyenne, Wyoming. Upon inquiry, Brian Eicholtz, Ike's Bar & Grill, provided information on the extensive remodel of the building and advised the business will be a neighborhood bar and grill. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending the City of Cheyenne's Solid Waste Fee Schedule. Vicki Nemecek, Public Works Director, advised she was available for any questions. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Cook voting "no". (#4361)

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to increase the total lot coverage of the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types to 80%. Dr. Rinne advised there was no recommendation on the item at the Public Services Committee. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Comments were made regarding continued lack of maintenance of landscaping following planting resulting in death of plants/trees which are not being replaced. Discussion included the need to review landscaping requirements and maintenance responsibilities. It was noted that the proposed amendment only effects certain lot types and is a way to save water usage. Concern was raised regarding reduced area of green in some areas to 50' x 50', noting landscaping is important for various reasons. Dr. Rinne moved to amend all references to 80% be changed to 70%, seconded by Dr. Aldrich. Dr. Rinne noted the proposed amendment is an attempt to compromise, and his preference would be to revisit in a year. It was reported that some lots currently have less than the 70% required. Motion to amend failed. Voting "yes" - Dr. Aldrich, Mr. Laybourn, Dr. Rinne and Mr. White. Voting "no" - Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Roybal and Mr. Segrave. Main motion carried. Voting "yes" – all members of the governing body present with exception of Mr. Laybourn and Dr. Rinne voting "no". (#4362)

ORDINANCE –3rd READING – Creating Chapter 8.29, Hood System Cleaning Companies, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Dr. Aldrich. Upon inquiry, Division Chief Byron Mathews, Cheyenne Fire & Rescue Department, clarified that businesses will be required to be licensed moving forward with no provisions to grandfather businesses. Chief Mathews explained that although there may be an initial impact on businesses due to uniformity and initial higher cost for cleaning, eventually there would be a cost savings which will result in

an overall safety for consumers moving forward. Motion carried. Voting “yes” – all members of the governing body present. (#4363)

ORDINANCE –2nd READING – Amending Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. White. It was noted that initially it was believed delivery services may reduce DUI’s, however, after the limited 6-month period during the COVID pandemic, they actually increased. Further comments included: support for the ordinance, limited time frame and increased alcohol intake due to the COVID pandemic may have contributed to the increase of DUI’s, more establishments will likely participate if delivery is available permanently and the importance of businesses being able to compete and provide additional services. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Dr. Rinne voting no.

ORDINANCE –2nd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Repealing Chapter 2.52, Personnel Commission, and creating a new Chapter 2.52, Personnel System, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Seth Lloyd, Planning and Development Department and CPEA representative, noted concerns relating to this and the following agenda items pertaining to proposed changes to the Personnel Commission. Mr. Lloyd reported dissolving the commission is concerning to city employees and requested clarification on the effect this will have on employees, urging caution proceeding with the proposed changes. Linda Burt, Personnel Commission Vice Chair, voiced concerns and explained members of the commission are volunteers and the commission provides fairness and due process. Ms. Burt noted the proposal calls for the hearing officer to be paid for by the city which may give the appearance of bias. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Dr. Rinne moved to amend by substitute dated May 24, 2021, seconded by Mr. White. City Attorney Mike O’Donnell explained the amendment clarifies that the existing grievance procedure will not be eliminated. Mayor Collins overruled a point of order raised regarding comments not being germane to the agenda item on the floor. Upon inquiry, Mayor Collins advised concerns were raised on removing the opportunity of having a jury of peers participate in hearing procedures for city employees. Mr. Lloyd reported there is an impression by city employees that the commission is a trial by jury and if the city appoints a hearing officer, that person may be predisposed to rule in favor of the city. It was additionally noted employees fear the new procedure won’t be as fair as the current process. Upon inquiry, Mr. O’Donnell provided information on the current Personnel Commission which

consists of 7 members - 3 city employee representatives and 4 citizens appointed by the Mayor. Mr. O'Donnell explained that due to the volunteer status of members, it can be difficult to assemble the commission for hearings. Motion to amend carried. Comments followed relating to support for the ordinance, informal grievance process, concerns involving one individual to serve as hearing officer, establishing a fair process, inclusion of a neutral party hearing officer, providing training to Personnel Commission members and potential of a conflict of interest when employee representative members of the commission are employees of the same department the petitioner is employed by. Motion to amend carried. Voting "yes" – all members of the governing body present. Main motion as amended carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Repealing Chapter 2.92, Personnel System, and creating a new Chapter 2.92, Administrative Hearing Procedure, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Granting a non-exclusive franchise to Visionary Communications, Inc., within the rights-of-way of the City of Cheyenne, Wyoming. Stacy McDonald, Visionary Broadband, expressed appreciation and explained the business in the community and state. Mr. Roybal moved to approve on second reading, seconded by Dr. Aldrich. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to align the UDC fee schedule with the fee adoption practices of the City. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located north of Pershing Boulevard, west of Christensen Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to MR Medium-Density Residential for land located north of Pershing Boulevard, west of Christensen Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of and including South Greeley Highway (US 85), north of Chalk Bluff Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Upon inquiry, Tom Cobb, City Engineer, advised he has been in contact with the state regarding the proposal to annex South Greeley Highway and anticipates receiving a response this week. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to AG Agricultural, LI Light Industrial, and HI Heavy Industrial for land located east of South Greeley Highway (US 85), north of Chalk Bluff Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Comments were made acknowledging that fee increases aren’t generally favored and that BOPU did an excellent job of looking at surrounding communities’ fee structures as references for the fee adjustments. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2021 and ending June 30, 2022. Mr. White moved to approve on second reading, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated May 20, 2021 including the following amendments: increasing the City Attorney Division by \$123,200.00 and decreasing Miscellaneous Division by the same amount; increasing the Clean and Safe Division by \$73,000.00 and decreasing the Miscellaneous Division by the same amount and increasing the Compliance Division by \$18,278.00 and increase revenue from reserves in the same amount, seconded by Mr. Segrave. Dr. Rinne moved to divide the question to discuss and vote on the amendments separately, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Roybal and Mr. White voting “no”. Item #1-motion to approve increasing the City Attorney Division by \$123,200.00 and decreasing Miscellaneous Division by the same amount carried. Voting “yes” – all members of the governing body present. Item #2-increasing the Clean and Safe Division by \$73,000.00 and decreasing the Miscellaneous Division by the same and amount. Discussion included: Use of one-time funds for on-going expenses such as permanent full-time employees, options for other funding sources that may be available for Depot Plaza repairs and maintenance, and efforts to fund positions from the general fund rather than one-time funding. Upon inquiry, Robin Lockman, City Treasurer, advised depending on sales tax collections, it could be possible to use some

discretionary funds to aid in moving employees under the general fund. Comments were made regarding sales tax funding for the Botanic Gardens operations and maintenance which is currently be utilized for a few employees' salaries and concerns relating to depleting that funding. Support was voiced for moving full-time staff under the general fund instead of temporary tax funding. Upon inquiry, Mayor Collins clarified the proposed funding could be allocated to other areas of the budget if the motion fails. Additional discussion included the importance of repairing and maintaining the Depot Plaza for tourism and image, noting improvements will help generate sales tax and other revenue. Comments were made on the value of operations and maintenance funding, functions of the Clean & Safe Division, and lack of available funding to move Botanic Gardens staff under the general fund. Upon inquiry, Mayor Collins advised a vote in favor of the motion before the governing body would move the funding into the Clean & Safe Division. Ms. Lockman, upon inquiry, reported the funding in question would only take care of the salary for one position, noting there is still significant amount of benefits to be covered. Jason Sanchez, Community Recreation & Events Deputy Director, explained a recent site visit was done at the Depot Plaza and several areas for repair and maintenance were identified and that funds from this amendment would be used for that purpose. Mr. Sanchez reviewed Depot Plaza areas that need maintained and noted the goal is to restore the plaza. Motion carried. Voting "yes" – all members of the governing body present with Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. White voting "no". Item 3-increasing the Compliance Division by \$18,278.00 and increase revenue from reserves in the same amount. Comments were made regarding a recent Ward I Town Hall public meeting which highlighted nuisance issues. Supportive comments were voiced noting the importance of assisting in the efforts. Motion carried. Voting "yes" – all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present. The following is a summary of the proposed budget, including the aforementioned amendments: General Fund, \$53,795,619; Weed and Pest, \$573,274; Youth Alternatives Grants, \$882,886; Recreation Programs, \$1,477,947; Community Development Block Grant, \$617,074; Law Enforcement Grants, \$252,616; Transportation Planning, \$866,101; Transit, \$2,603,121; Juvenile Justice, \$67,640; Special Friends, \$84,664; Development Impact Fees, \$212,800; One Percent Sales Tax 2019-22, \$11,087,381; Specific Purpose Option Tax, \$601,905; Youth Activities/Ropes, \$18,221; Golf Facilities, \$276,590; Fleet Maintenance, \$4,460,139; Solid Waste Management, \$19,301,898; Civic Center, \$2,057,777; Ice & Events Center, \$828,665; Perpetual Care, \$3,000; Total City, \$100,069,318; Water Enterprise, \$23,619,580; Sewer Enterprise, \$14,123,800; Total Appropriation, \$137,812,698.

ORDINANCE –1st READING – Creating a new Chapter 2.80, Urban Renewal Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Segrave)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to create the Urban Use Overlay District – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Creating Section 13.04.141, Fee Assessment on Gross Revenues, of Chapter 13.04, Board of Public Utilities, of Title 13, Public Utilities Generally, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Segrave)

RESOLUTION – Rescinding Resolution No. 6023 which establishes that all revenue from City Contract No. 5902 be split evenly between the City of Cheyenne Solid Waste Enterprise Fund, the Board of Public Utilities, and the newly established Belvoir Ranch Recreation Special Revenue Fund. Cari Cuffney spoke in favor of the anticipated substitute to be introduced and noted the contract provides ongoing maintenance funds for the Belvoir Ranch masterplan development. Mr. Roybal moved to adopt, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated May 17, 2021, seconded by Dr. Aldrich. Mr. O'Donnell provided information on the substitute stating the original proposed resolution redirected all money to the general fund and the proposed substitute amendment directs 2/3 of the funding to the general fund and 1/3 to the Belvoir Ranch Recreation Special Revenue fund. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. (#6146)

RESOLUTION – Authorizing the Downtown Development Authority (DDA) to generate revenue for general operating funds. Amber Ash, Executive Director of DDA, explained that as part of the annual strategic planning process and in effort to become financially stable, it was determined the DDA would seek approval of a resolution authorizing approval to generate revenue utilizing concepts such as advertising options, apparel sales, sponsorships as well as other revenue generating efforts. She explained the DDA has faced challenges relating to unstable revenues over the last few years and they wish to look at different ways for sustainability. Ms. Ash reported at the May 17th Finance Committee meeting, a recommendation to postpone the resolution to the next meeting of governing body was made. In response to that, a substitute was drafted which removes flexibility for funding options leaving specified options. Wendy Volk voiced support and applauded what the DDA has presented to council. Mr. Roybal moved to adopt, seconded by Mr. White. Mr. Roybal moved to postpone to June 14, 2021, seconded by Mr. Laybourn. Dr. Rinne advised a substitute amendment was forthcoming and requested the postponement be voted down in order to consider the amendment. Motion to postpone failed. Voting “no” all members of the governing body present with the exception of Mr. Laybourn voting “yes”. Dr. Aldrich moved to amend by substitute dated May 24, 2021, seconded by Mr. Roybal. Mr. O'Donnell provided information on the substitute noting it removes the flexibility and only allows for funds to be raised for the listed items. Comments and additional details were provided on the proposed substitute amendment. Concerns were raised relating to allowing full flexibility and the potential appearance of competition with merchants located downtown. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins, Mr. Johnson and Dr. Rinne voting “no”. Additional concerns were raised regarding advertising, amount of available DDA reserve funding and turnover rate of executive directors and board members during the past 6 years which contributes to the success of the DDA. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. (#6147)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the fiscal year beginning July 1, 2021 and ending June 30, 2022 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2021 and ending June 30, 2022 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$16,953.97 pursuant to Wyo. Stat. §16-4-502 (BOPU uncollectible debts) – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Saddle Ridge, 16th Filing, a plat of a portion of Section 25, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located north of Pershing Boulevard, west of Christensen Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Bison Business Park, 2nd Filing, a plat of a portion of Sections 32 and 33, Township 13 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located east of South Greeley Highway [US 85], north of Chalk Bluff Road) -- referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of city-owned land and buildings for parking, camping, and other activities during the 2021 Cheyenne Frontier Days Celebration. Motion (per Consent Agenda) carried. (#7343)

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Artist Guild, Inc., for the Van Tassell Carriage House located at 1701 Morrie Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#7344)

[CA] Payment Agreement between the City of Cheyenne and Blue Cross Blue Shield to provide a rebate payment to the City of Cheyenne in the amount of \$275,000.00 for group health insurance benefits for City employees. Motion (per Consent Agenda) carried. (#7345)

[CA] Agreement between the City of Cheyenne and WJE, LLC, Cheyenne, WY, for development fees for Saddle Ridge 16th Filing, final plat – referred to Public Services Committee.

[CA] Renewal of Contract #6836 between the City of Cheyenne and Blue Cross Blue Shield for group health insurance benefits for City employees. Motion (per Consent Agenda) carried. (#6836)

[CA] City Contract No. 150, Notice of Renewal of Lease Number 57-82HW-1-0171 from the United States Department of Agriculture, Agricultural Research Service, to lease the High Plains Grasslands Research Station – referred to Finance Committee.

[CA] Contract modification #1 to Contract #7256 between the City of Cheyenne and Dan Hart Patrol Service, LLC, for the Happy Jack Landfill Phase 2, Cells 1, 2 and 3 Excavation Earthworks project for additional liner & shipping cost for the leachate trench (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract modification #2 to Contract #7258 between the City of Cheyenne and Northwest Linings & Geotextile Products Inc., for the Happy Jack Landfill Phase 2, Cells 1, 2 and 3 Excavation Earthworks project for a force majeure cost increase for unprecedented condition in the polypropylene and resin market (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne, and Wyoming Machinery Company, Cheyenne, Wyoming, to replace the undercarriage, track shoes, and related components on a Caterpillar D5K Dozer (City Block #5901) (Fleet Maintenance Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$45,398.64).

[CA] Bar and grill liquor license application filed with the City Clerk's Office for HRARG DH Cheyenne, WY, LLC, d/b/a Dog Haus, 3838 Atkin St., Cheyenne Wyoming. Motion (per Consent Agenda) carried.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Tres Amigos Incorporated d/b/a Tres Amigos Family Mexican Restaurant, 2414 W. Lincolnway, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Appointment of John B. Kopper as Chief of the Cheyenne Fire and Rescue Department. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Supportive comments were voiced relating to the appointment of Mr. Kopper as Fire Chief by members of the governing body. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointment). Following announcement of the vote, the oath of office was administered to Chief John B. Kopper by City Clerk Kris Jones.

Reappointment of Mary Guthrie and Matthew Pope to the Board of Public Utilities Board of Directors. Mr. White moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of Public Hearing to be held June 14, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located northeast of the intersection of Dell Range Boulevard and Whitney Road.

Announcement was made that a Calcutta, benefitting the Black Dog Animal Rescue, will be held Friday, June 4, 2021 beginning at 6:00 p.m. at Alf's Pub and Bar, 1622 E. 19th Street, Cheyenne, Wyoming (35% of proceeds go to the Black Dog Animal Rescue).

Mayor Collins noted an additional Public Hearing announcement and requested the City Clerk read it into the record:

Announcement of Public Hearing to be held June 14, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2022.

Under other business:

Upon inquiry, Mayor Collins advised redefining the boundaries for voting districts and city council wards is considered following data collection of the census. Mayor Collins reported this is considered when there have been sufficient growth changes warranting a change to balance the council wards.

Dr. Aldrich commented on the recent Ward I public forum that was held at David Romero Park and the lighting of the airport fountain.

Mr. Johnson provided information on an upcoming community cleanup to be held on June 6, 2021 at the Ames Underpass beginning at 10 a.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:04 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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